

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC., d/b/a EZ CRUISE PARKING;
LIGHTHOUSE PARKING INC.; and
SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING**

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES; and
THE GALVESTON PORT FACILITIES CORPORATION**

**STATEMENT OF RESPONDENT THE BOARD OF TRUSTEES
OF THE GALVESTON WHARVES¹**

TO THE HONORABLE CLAY G. GUTHRIDGE, ADMINISTRATIVE LAW JUDGE:

Respondent files this Statement pursuant to the Order to Identify Necessary Supplemental Briefing dated August 17, 2018, as follows:

I.

While Respondent does not necessarily agree with Complainants' characterization of the underlying facts and circumstances, Respondent agrees that no additional briefing is required on the "transportation factors" issue referenced in Complainants' Statement.

II.

Additionally, and to the extent such be necessary after resolution of the foregoing issue, Respondent would show that the issue of whether or not Complainants are entitled to reparations

¹ Complainants' claims against Respondent Galveston Port Facilities Corp. were dismissed with prejudice (*Initial Decision at p. 25.*) Complainants never excepted to nor appealed this dismissal.

may need to be addressed as well. This issue was previously briefed in Respondents' Brief at pp. 38-49, and in Complainants' Reply Brief at pp. 29-32. Therefore, no supplemental briefing is required on this issue.

Respectfully submitted,

McLEOD, ALEXANDER, POWEL &
APFFEL, P.C.

By: Anthony P. Brown *BAL*
Anthony P. Brown
Federal I.D. No. 7150
Texas Bar No. 03091300
802 Rosenberg Avenue/P.O. Box 629
Galveston, TX 77553
(409) 795-2022 [telephone]
(409) 762-1155 [facsimile]
apbrown@mapalaw.com

ATTORNEYS FOR RESPONDENTS

CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this 24th day of September, 2018, and that a true and correct copy of the foregoing was served on all counsel of record via email and certified mail return receipt requested.

Anthony P. Brown *BAL*
Anthony P. Brown